

**SUBSTITUTE FOR
SENATE BILL NO. 769**

A bill to amend 1953 PA 232, entitled
"Corrections code of 1953,"
(MCL 791.201 to 791.285) by adding section 64a.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 64a. (1) The department shall provide each prisoner when**
2 **the prisoner is received in a correctional facility a medical**
3 **information release form, an emergency contact form, and the**
4 **brochure developed under subsection (8). The department shall also**
5 **provide each prisoner already in the custody of the department on**
6 **the effective date of the amendatory act that added this section a**
7 **medical information release form and emergency contact form to be**
8 **used as provided in this section. If a prisoner is unable to**
9 **complete the medical information release form or emergency contact**



1 form independently, on request, the department shall make available
2 a prisoner counselor, facility Americans with Disabilities Act
3 coordinator, or health services staff member to assist the prisoner
4 in completing the form or forms.

5 (2) A medical information release form and emergency contact
6 form executed by a prisoner under this section must be signed by
7 the prisoner.

8 (3) Except as otherwise provided in a guardianship order, a
9 prisoner under a guardianship order has the right to complete the
10 medical information release form and emergency contact form under
11 this section.

12 (4) If a prisoner executes a medical information release form
13 under this section, the prisoner shall provide the full name and
14 contact information for each individual the prisoner wishes to
15 designate as an authorized recipient. A prisoner shall provide on
16 an emergency contact form the full name and contact information for
17 each individual the prisoner designates as an emergency contact.

18 (5) The department shall instruct each prisoner that it is the
19 prisoner's responsibility to ensure that the contact information
20 for each individual the prisoner includes on the prisoner's medical
21 information release form and emergency contact form is and remains
22 accurate. The department shall instruct each prisoner that the
23 prisoner may request to amend the prisoner's medical information
24 release form or emergency contact form if the prisoner becomes
25 aware that the contact information for an individual listed on a
26 form has changed or for any other reason.

27 (6) If a prisoner in the custody of the department experiences
28 a critical medical emergency, not later than 2 hours after the
29 prisoner experiences the critical medical emergency, the department



1 shall make an attempt to provide notice of the critical medical
2 emergency to 1 individual designated as an emergency contact on the
3 prisoner's emergency contact form. In providing the notice under
4 this subsection, the department may disclose the location at which
5 the prisoner is receiving medical treatment for the critical
6 medical emergency only if the department determines the disclosure
7 is necessary. If the department, in consultation with the
8 prisoner's treating physician, determines the critical medical
9 emergency necessitates the prisoner having a visitor in the
10 hospital, the department may arrange for approved visitors to visit
11 with the prisoner in the hospital in accordance with the policies
12 of the department. The department may deny a visit by an approved
13 visitor under this subsection only if the department determines the
14 visit may raise a safety concern. Not later than 5 hours after the
15 determination is made, the department shall provide, in writing,
16 the denial of the visit by an approved visitor under this
17 subsection to the prisoner and the emergency contact.

18 (7) The department shall provide a prisoner's qualified
19 medical information to the prisoner's authorized recipient if the
20 authorized recipient contacts the department and requests the
21 prisoner's qualified medical information from the department.

22 (8) Not later than 90 days after the effective date of the
23 amendatory act that added this section, the department shall
24 develop a form to be used as a medical information release form and
25 a form to be used as an emergency contact form as provided in this
26 section. The medical information release form and emergency contact
27 form must be fully accessible, written in plain language, and, if
28 requested, available in alternative formats, including, but not
29 limited to, braille. Not later than 60 days after the effective



1 date of the amendatory act that added this section, the department
2 shall create a brochure that contains the instruction described
3 under subsection (5) and that explains the designation of an
4 individual as an authorized recipient compared to the designation
5 of an individual as an emergency contact. The department shall make
6 the brochure under this subsection available on its website, to a
7 prisoner as described under subsection (1), and to a prisoner at
8 each annual health examination.

9 (9) As used in this section:

10 (a) "Approved visitors" means the department-approved
11 immediate family members of a prisoner and the department-approved
12 clergy members of the prisoner's designated religion.

13 (b) "Authorized recipient" means the individual a prisoner
14 designates on the prisoner's medical information release form as
15 having permission to receive the prisoner's qualified medical
16 information.

17 (c) "Critical medical emergency" means a medical emergency
18 experienced by a prisoner that will require the prisoner to receive
19 inpatient health care at a hospital.

20 (d) "Emergency contact" means the individual a prisoner
21 designates on the prisoner's emergency contact form as being the
22 individual the prisoner elects the department to contact in a
23 critical medical emergency.

24 (e) "Guardianship order" means either of the following:

25 (i) A court order issued under chapter 6 of the mental health
26 code, 1974 PA 258, MCL 330.1600 to 330.1644.

27 (ii) The letters of guardianship issued under part 3 of article
28 V of the estates and protected individuals code, 1998 PA 386, MCL
29 700.5301 to 700.5319, for a legally incapacitated individual.



1 (f) "Medical information" means information regarding an
2 individual's medical history, mental or physical condition, or
3 medical treatment or diagnosis by a health care professional.
4 Medical information does not include the location in which a
5 prisoner is receiving medical treatment from a health care
6 professional.

7 (g) "Qualified medical information" means the medical
8 information a prisoner selects to release to an authorized
9 recipient on the prisoner's medical information release form.